

TENTATIVE RULING(S) FOR September 3, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2426792

Jones vs From the Deserts to the Sea et al

TENTATIVE RULING(S):

On August 30, 2024, Plaintiffs Timothy Jones, individually and as successor-in-interest to Esther Jones, Robert Leonard Brooks, and Ronald William Brooks filed their complaint against Defendants From the Deserts to the Sea, LLC (Deserts), Radiant Hospice Care, Inc. (Radiant), Larry Bluford aka Larry Beaufort, and Don Brooks (Don) [nominal]. With the filing of the first amended complaint on November 12, 2024, Plaintiffs added Defendant CPH Hospital Management, LLC dba Coast Plaza Hospital (Coast).

On July 8, 2025, Plaintiffs filed the second amended complaint. Both Coast and Radiant filed demurrers and motions to strike directed at the SAC. On November 24, 2025, the Court sustained Coast's demurrer to the first cause of action for elder abuse and the fourth cause of action for wrongful death based on elder abuse, with leave to amend.

On December 8, 2025, Plaintiffs filed the operative third amended complaint (TAC), alleging causes of action for: (1) elder abuse, brought by Timothy Jones as successor-in-interest to Esther Jones; (2)

negligence, brought by Timothy Jones as successor-in-interest to Esther Jones; (3) wrongful death based on negligence, brought by Plaintiffs individually; and (4) wrongful death based on elder abuse and neglect, brought by Plaintiffs individually.

FACTUAL ALLEGATIONS

Plaintiffs allege that Esther Jones was admitted to Coast on August 17, 2023, after being found confused and wandering, was diagnosed with failure to thrive and dementia, and required 24-hour supervised care by persons trained to care for dementia patients. (TAC ¶¶ 43-44, 130-131.) Plaintiffs allege that Coast nevertheless discharged Jones on September 7, 2023 to Deserts, which Plaintiffs allege was an unlicensed board and care facility that lacked a dementia waiver, adequately trained staff, 24-hour supervision, and appropriate fall prevention measures.

Plaintiffs further allege that Coast failed to verify Deserts' licensure and ability to meet Jones's needs and that the discharge resulted from profit-driven policies concerning patient turnover, staffing, and training allegedly established and enforced by Coast's Administrator, DOE 276. (TAC ¶¶ 45-46, 132-142.)

Plaintiffs allege that Radiant provided hospice services to Jones while she resided at Deserts from approximately September 7, 2023 until her death on December 5, 2023. Plaintiffs allege that Radiant failed to adequately develop and implement her plan of care, provide necessary pain management and medical care following falls, and report the allegedly unsafe and unlicensed placement despite knowing of Jones's dementia and Deserts' alleged deficiencies. Plaintiffs also allege that Radiant's Administrator, DOE 101, implemented profit driven policies concerning staffing and training. (TAC ¶¶ 55-65, 78, 99-100.) Jones allegedly suffered multiple falls and fractures while at Deserts and died on December 5, 2023. (TAC ¶¶ 52-54, 64-65.)

COAST PLAZA HOSPITAL'S DEMURRER AND MOTION TO STRIKE

Coast demurs to the first and fourth causes of action of the TAC on the grounds that they fail to state facts sufficient to constitute a cause of action and are uncertain (Code Civ. Proc., § 430.10, subds. (e), (f)). Coast also moves to strike those causes of action and related prayers for relief.

1. First Cause of Action – Elder Abuse and Neglect

To obtain the heightened remedies available under the Elder Abuse and Dependent Adult Civil Protection Act, a plaintiff must allege conduct constituting physical abuse, neglect, or abandonment and facts showing the defendant acted with recklessness, oppression, fraud, or malice in committing the abuse. (Welf. & Inst. Code, § 15657.) "Neglect" includes the failure to assist in personal hygiene or provide food, the failure to provide medical care for physical and mental health needs, the failure to protect from health and safety hazards, and the failure to prevent malnutrition or dehydration. (Welf. & Inst. Code, § 15610.57, subd. (b)(1)–(4).) "Abandonment" means "the desertion or willful forsaking of an elder or a dependent adult by anyone having care or custody of that person under circumstances in which a reasonable person would continue to provide care and custody." (Welf. & Inst. Code, § 15610.05.)

Acts of simple professional negligence are insufficient to support the heightened remedies available under the Act. (*Delaney v. Baker* (1999) 20 Cal.4th 23, 32.) Recklessness requires more than inadvertence, incompetence, unskillfulness, or a failure to take precautions; it involves a conscious choice of a course of action with knowledge of the serious danger to others. (*Id.* at pp. 31–32.)

Coast argues that the TAC alleges, at most, an unsafe discharge. According to Coast, Jones was not deserted or forsaken because she was discharged from Coast to Deserts, where she was not alone and where residential and hospice services were being provided. Coast therefore contends that any failure to adequately investigate or vet Deserts sounds in negligence, not abandonment.

The Court is not persuaded.

The TAC alleges more than a negligent failure to investigate a receiving facility. Plaintiffs allege that Coast knew Jones suffered from dementia and cognitive impairment and required 24-hour supervised care by persons trained to care for dementia patients. (TAC ¶¶ 43–44, 130–131.) Despite that knowledge, Coast allegedly discharged Jones to Deserts without verifying whether Deserts was licensed, authorized and equipped to care for dementia patients, staffed by persons trained in dementia care, capable of providing 24-hour supervision, or able to implement appropriate fall-prevention measures. (TAC ¶¶ 132–135.) Plaintiffs further allege that Coast’s own discharge policies required an appropriate and safe post-hospital placement. (TAC ¶¶ 133, 140.)

Coast’s contention that abandonment necessarily requires leaving an elder physically alone or in a public place is not supported by the statutory language. Section 15610.05 requires “desertion or willful forsaking” under circumstances in which a reasonable person would continue to provide care or custody.

Accepting the allegations as true, knowingly relinquishing custody of an elder who requires continuous dementia care to a facility allegedly incapable of providing that care may constitute willful forsaking. Whether Coast actually knew Deserts was unsuitable, and whether its discharge decision amounted only to professional negligence, present factual questions that cannot be resolved on demurrer.

The TAC therefore sufficiently alleges abandonment. The Demurrer is thus **OVERRULED**.

a. Recklessness

The TAC also sufficiently alleges the heightened culpability required by section 15657. Recklessness involves more than inadvertence or failure to exercise reasonable care; it requires a conscious choice of action with knowledge of the danger involved. (*Delaney, supra*, 20 Cal.4th at p. 31.)

Plaintiffs allege Coast’s Administrator, DOE 276, implemented and enforced policies favoring rapid patient turnover, pressured discharge personnel to meet turnover requirements, and deliberately understaffed and undertrained the departments responsible for discharge planning. (TAC ¶¶ 138–140.) Plaintiffs further alleged DOE 276 knew dementia patients required placement with qualified providers capable of furnishing 24-hour supervision and knew that failing to verify the licensure and capability of receiving facilities could expose vulnerable elders to serious harm, but nevertheless continued those policies. (TAC ¶ 141.)

Taken as true, those allegations permit an inference of conscious disregard sufficient at the pleading stage. The TAC therefore adequately alleges the heightened culpability required to support the remedies sought under the Elder Abuse Act.

b. Corporate Liability

Coast also argues that Plaintiffs have not adequately alleged involvement by an officer, director, or managing agent.

The TAC alleges DOE 276 was Coast’s Administrator, exercised substantial discretion over budgeting, staffing, training, and profitability decisions, and made decisions that determined corporate policy. (TAC ¶ 138.) It further attributes the challenged turnover, staffing, and training policies directly to DOE 276, and alleges DOE 276 authorized and ratified the conduct resulting in Jones’s discharge. (TAC ¶¶ 139–142.)

Those allegations are sufficient at the pleading stage to allege that DOE 276 was a managing agent within the meaning of Civil Code section 3294, subdivision (b). The TAC therefore adequately alleges the corporate involvement required by Welfare and Institutions Code section 15657, subdivision (c), for purposes of Plaintiffs’ claim for enhanced remedies.

Accordingly, Coast's demurrer to the first cause of action is **OVERRULED**.

2. Fourth Cause of Action – Wrongful Death Based on Elder Abuse and Neglect

Coast demurs to the fourth cause of action based on the same asserted deficiencies in Plaintiffs' allegations of elder abuse and abandonment.

As discussed above, however, the TAC sufficiently alleges that Coast's conduct constituted abandonment and caused Decedent's injuries and death. (TAC ¶¶ 137, 165–168.) The heirs may maintain an independent wrongful death claim under Code of Civil Procedure section 377.60 based on that alleged wrongful conduct. (*Holland v. Silverscreen Healthcare, Inc.* (2025) 18 Cal.5th 364 (*Holland*).)

Accordingly, the Court **OVERRULES** Coast's demurrer to the fourth cause of action.

3. Uncertainty

Coast additionally demurs to the first and fourth causes of action for uncertainty.

The TAC identifies the conduct alleged to constitute abandonment, the circumstances surrounding Jones's discharge, the alleged culpable policies, and the managing agent allegedly responsible for those policies. Coast's detailed challenges to those allegations further demonstrate that it understands the claims being asserted.

Accordingly, the Court **OVERRULES** the demurrer for uncertainty.

4. Motion to Strike

Coast seeks to strike the first and fourth causes of action and the corresponding prayers for relief. Its rationale is the same as the demurrer: Plaintiffs have not adequately alleged abandonment, heightened culpability, or corporate participation.

Because those allegations are sufficient to withstand demurrer, the causes of action are not irrelevant or improper matter subject to striking under Code of Civil Procedure section 436.

Because the TAC sufficiently alleges elder abuse by abandonment and the requisite heightened culpability, the related prayers for relief are not subject to being stricken on the grounds asserted by Coast.

Accordingly, Coast's motion to strike is **DENIED**.

RADIANT HOSPICE CARE, INC.'S DEMURRER AND MOTION TO STRIKE

Radiant separately demurs to the first and fourth causes of action on the ground that they fail to state facts sufficient to constitute a cause of action (Code Civ. Proc., § 430.10, subd. (e)), and moves to strike portions of the TAC. Plaintiffs oppose both sets of motions, and each Defendant filed a reply.

Meet and Confer

Radiant does not appear to have strictly complied with the requirement that the parties meet and confer in person or by telephone before filing a demurrer or motion to strike. Defense counsel declares, however, that on December 23, 2025, he emailed Plaintiffs' counsel and attached drafts of Radiant's proposed demurrer

and motion to strike but received no response. Counsel followed up again by email on January 12, 2026, and again received no response. (Scupine Decl. ¶¶ 2–5, Exhs. C-D.)

Plaintiffs’ counsel therefore had notice of the specific issues Radiant intended to raise and an opportunity to respond before the motions were filed. Moreover, Coast’s demurrer and motion to strike directed to the same operative pleading are also before the Court.

Given Plaintiffs’ notice of Radiant’s proposed challenges, the absence of any response to counsel’s two meet and confer attempts, and the fact that Coast’s related demurrer and motion to strike are being heard concurrently, judicial economy favors addressing Radiant’s motions on the merits.

Radiant’s Request for Judicial Notice

Radiant requests judicial notice of California Secretary of State records concerning its corporate status, which are attached as Exhibit A to the demurrer. (Demurrer, p. 13:25-27; Exh. A.) Although Radiant did not file a separate request for judicial notice as contemplated by California Rules of Court, rule 3.1113(l), Plaintiffs do not object.

Accordingly, the request will be considered on its merits.

Judicial notice of the Secretary of State records is proper as to Radiant’s corporate existence and status. (Evid. Code, § 452, subd. (c).)

The request for judicial notice is GRANTED for that limited purpose.

1. First Cause of Action – Elder Abuse and Neglect

Radiant argues that the first cause of action fails because its hospice services did not create the substantial caretaking or custodial relationship required for elder abuse, the alleged conduct amounts at most to professional negligence rather than reckless neglect, and the TAC does not sufficiently allege authorization or ratification by a Radiant officer, director, or managing agent.

Plaintiffs respond that Radiant assumed ongoing responsibility for several of Decedent’s basic needs through its interdisciplinary hospice team, knowingly failed to provide required care despite awareness of Decedent’s condition and Deserts’ alleged deficiencies, and acted pursuant to understaffing and undertraining policies attributable to Radiant’s Administrator, DOE 101.

a. Substantial Caretaking or Custodial Relationship

Under *Winn v. Pioneer Medical Group, Inc.* (2016) 63 Cal.4th 148, 158, the Elder Abuse Act’s neglect provisions require a substantial or “robust” caretaking or custodial relationship in which the defendant assumes a significant measure of responsibility for one or more basic needs an able-bodied competent adult ordinarily manages independently.

Radiant argues that Deserts, not Radiant, had the requisite custodial relationship because Radiant’s personnel provided intermittent hospice services while Deserts remained responsible for Decedent’s daily care and supervision.

In reply, Radiant relies on *Oroville Hospital v. Superior Court* (2022) 74 Cal.App.5th 382 (*Oroville Hospital*), which addressed whether intermittent in-home nursing services constituted a substantial caretaking or custodial relationship. However, *Oroville Hospital* is distinguishable from the allegations here.

In *Oroville Hospital*, home health nurses made a series of visits to provide medically supervised wound care, while another caregiver attended to the patient's dressing, food, medication, ambulation, toileting, diapers, physician visits, and diabetes management. The Court of Appeal held that the wound care relationship was insufficient. But the Court expressly held that the number of visits is not dispositive, that qualifying care relationships are evaluated case by case, and, importantly, that nothing in *Winn* says only one person or entity may simultaneously have the requisite relationship with the elder. (*Oroville Hospital*, *supra*, 74 Cal.App.5th at pp. 398-400.)

The allegations here are materially broader than the services at issue in *Oroville Hospital*. Paragraph 78 expressly alleges that Radiant was responsible for assisting Jones with showering, grooming, dressing, feeding, medication provision, health care, and spiritual care, needs she could not meet independently. Radiant allegedly supplied a home health aide twice each week, skilled nursing weekly, an RN every two weeks, and other interdisciplinary services throughout Jones's approximately three-month residence at Deserts. (TAC ¶ 78.) Plaintiffs further allege Radiant assumed responsibility for her pain management, comfort, palliative care, and end of life plan. (TAC ¶¶ 55-65, 78.)

These alleged responsibilities concern the types of basic needs identified in Welfare and Institutions Code section 15610.57, including assistance with personal hygiene and the provision of medical care and protection from health and safety hazards. (Welf. & Inst. Code, § 15610.57, subd. (b)(1)–(3).)

Thus, the TAC alleges more than intermittent treatment of a discrete medical condition; it alleges ongoing responsibility for several of Decedent's fundamental needs. Taken as true, those allegations sufficiently establish the substantial caretaking or custodial relationship required by *Winn*.

Plaintiffs also contend Radiant qualifies as a "care custodian" under Welfare and Institutions Code section 15610.17. That statutory designation does not by itself resolve the issue because *Winn* requires consideration of the actual relationship between the parties. Here, however, the relationship alleged in the TAC is sufficient, and the extent of Radiant's actual responsibility for Decedent's basic needs presents a factual issue not properly resolved on demurrer.

b. Recklessness Versus Professional Negligence

Radiant next argues that paragraphs 55 through 65 alleges, at most, deficient hospice treatment: inadequate care planning, inadequate pain management, failure to provide appropriate post-fall treatment, and similar medical errors. Radiant contends these alleged deficiencies amount to professional negligence rather than reckless neglect.

The TAC, however, alleges something more.

Plaintiffs allege Radiant actually knew Deserts was unlicensed and unequipped to care for a person suffering from advanced dementia, deliberately continued providing services there so that it could continue billing Jones's insurance, and deliberately failed to report the alleged neglect despite being a mandated reporter. (TAC ¶ 62.) They allege that after Jones sustained falls and substantial fractures, Radiant failed to provide necessary care for those injuries or adequately address her pain. (TAC ¶¶ 63-65.) They additionally allege that Radiant's Administrator, DOE 101, deliberately adopted policies of hiring inadequately trained staff without appropriate onboarding and understaffing the hospice operation to increase profitability. (TAC ¶¶ 99-100.)

A regulatory violation or an isolated failure to follow a care standard would not itself establish recklessness. But a knowing pattern of withholding required care, combined with allegations that the pattern resulted from deliberate staffing or financial choices despite a known risk to patients, may support an inference of deliberate indifference. (*Sababin v. Superior Court* (2006) 144 Cal.App.4th 81, 90.)

Read collectively and accepted as true, the allegations are sufficient to allege more than negligent performance of hospice services. The sufficiency of Radiant's care and the extent of its knowledge are factual matters not properly resolved on demurrer.

c. Managing Agent

Radiant's contention that Plaintiffs failed to identify the relevant Administrator is not supported by the TAC.

Paragraph 10 specifically identifies DOE 101 as Radiant's Administrator, alleges DOE 101 was responsible for budgeting, staffing, training, and profitability directives, and alleges DOE 101 exercised substantial discretion sufficient to determine corporate policy. Paragraph 99 attributes the alleged undertraining policy to DOE 101. Paragraph 100 attributes Radiant's alleged understaffing and substitution of less-qualified personnel to DOE 101 for financial reasons.

That is sufficient at the pleading stage.

Radiant's demand for the actual person's name, precise internal policy documents, and identification of every employee affected by those policies asks for a level of evidentiary proof not required on demurrer.

Accordingly, Radiant's demurrer to the first cause of action is **OVERRULED**.

2. Fourth Cause of Action – Wrongful Death Based on Elder Abuse and Neglect

For the reasons discussed above regarding Coast, *Holland* permits the heirs to maintain an independent wrongful death claim under Code of Civil Procedure section 377.60 based on alleged elder neglect.

Because the TAC sufficiently alleges wrongful conduct by Radiant supporting that claim, the Court **OVERRULES** Radiant's demurrer to the fourth cause of action.

3. Motion to Strike

Radiant argues that Code of Civil Procedure section 425.13 prohibits Plaintiffs from pleading punitive damages against it without first obtaining an order establishing a substantial probability of prevailing. It relies on *Central Pathology Service Medical Clinic, Inc. v. Superior Court* (1992) 3 Cal.4th 181 (*Central Pathology*) and cases applying section 425.13 to intentional tort claims arising from professional negligence.

But the California Supreme Court subsequently addressed this precise interaction between section 425.13 and Elder Abuse Act claims in *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771 (*Covenant Care*). The Court held that section 425.13's procedural prerequisite does not apply to punitive damages claims predicated on elder abuse subject to section 15657's heightened remedies. (*Id.* at pp. 789–790.) The Court expressly declined to extend section 425.13's special procedural protection for health care providers in professional negligence actions to claims alleging egregious custodial elder abuse. (*Id.* at p. 776.)

Accordingly, *Central Pathology* does not independently require striking the punitive damages prayer if the TAC adequately states a section 15657 elder abuse theory. Because it does, section 425.13 provides no basis to strike the claim.

Radiant's alternative argument under Civil Code section 3294, subdivision (b), also fails for the reasons above. Plaintiffs allege that DOE 101 possessed the requisite policymaking authority and personally established the challenged staffing and training policies. (TAC ¶¶ 10, 99-100.) Those facts sufficiently support corporate participation.

Because the TAC sufficiently alleges elder abuse and the requisite corporate involvement, Radiant's challenge to the related remedies fails.

Accordingly, Radiant's motion to strike is DENIED.

RULING

Based on the foregoing analysis, the Court rules as follows:

1. COAST PLAZA HOSPITAL'S DEMURRER AND MOTION TO STRIKE

OVERRULES Coast's demurrer to the first cause of action for elder abuse and neglect and the fourth cause of action for wrongful death based on elder abuse and neglect. The TAC sufficiently alleges abandonment, recklessness, and managing agent involvement.

Coast's demurrer for uncertainty is likewise **OVERRULED**.

DENIES Coast's motion to strike.

2. RADIANT HOSPICE CARE, INC.'S DEMURRER AND MOTION TO STRIKE

OVERRULES Radiant's demurrer to the first cause of action for elder abuse and neglect and the fourth cause of action for wrongful death based on elder abuse and neglect. The TAC sufficiently alleges a substantial caretaking or custodial relationship, reckless neglect, and managing agent involvement.

DENIES Radiant's motion to strike.

3. RADIANT'S REQUEST FOR JUDICIAL NOTICE

GRANTS Radiant's request for judicial notice of the California Secretary of State records as to Radiant's corporate existence and status only.

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CIVSB2522694

Isidoro vs Hernandez

TENTATIVE RULING:

Plaintiffs Filiberto Garcia Isidoro and Hipolito Garcia move for summary adjudication of their right to partition by sale of the real property located at 16650 Randall Ave., Fontana (the “Subject Property”). Defendants Blanca Isidoro Hernandez, individually and as trustee of the Blanca Hernandez Revocable Trust dated February 14, 2024, and Esmeralda Garcia oppose.

For the reasons discussed below, the Motion is GRANTED IN PART and DENIED IN PART.

Judicial Notice

Plaintiffs request judicial notice of (1)-(5) recorded Grant Deeds, Quitclaim Deeds, or Trust Transfer Deeds (Exhs. A-E), (6) recorded Deed of Trust (Exh. F), and (7) Complaint (Exh. G).

GRANT per Evidence Code section 452, subdivisions (c), (d), and (h), and *Yvanova v. New*

Century Mortgage Corporation (2016) 62 Cal.4th 919, 924, fn. 1 (recognizing a court may properly take judicial notice of the existence and content of recorded documents, but not of disputes or disputable facts stated therein).

Evidentiary Objections

OVERRULE all 6 objections to Filiberto's Declaration and objections #1-9 and 12 to Hipolito's Declaration. SUSTAIN objections #10-11 (pp. 3:6-7 and 3:7-8) to Hipolito's Declaration (argument).

Analysis

A summary judgment motion cuts through the parties' pleadings to determine if a trial on the facts is necessary. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 [*Aguilar*].) Only the pleadings establish the grounds for granting or denying summary judgment. (*Tsemetzin v. Coast Federal Savings & Loan Assn.* (1997) 57 Cal.App.4th 1334, 1343.)

A party may move for summary adjudication of causes of action, affirmative defenses, damages, or issues of duty. (Code Civ. Proc., §437c, subd. (f)(1).) The rules and procedures for a summary judgment motion equally apply. (Code Civ. Proc., §437c, subd. (f)(2); *Lomes v. Hartford Financial Service Group, Inc.* (2001) 88 Cal.App.4th 127, 131.)

When the plaintiff moves for summary judgment/adjudication, it is his burden to produce admissible evidence on each element of a cause of action entitling him to judgment. (Code Civ. Proc., §437c, subd. (p)(1); *Aguilar, supra*, 25 Cal.4th at p. 850.) Upon the plaintiff meeting his burden, the burden shifts to the defendant to show a triable issue of one or more material fact exists as to the cause of action or defense. (Code Civ. Proc., §437c, subd. (p)(1); *Aguilar, supra*, 25 Cal.4th at pp. 849-51.)

Defendants contend Plaintiffs improperly rely on allegations in the verified Complaint. Plaintiffs may "not rely on the allegations of a [their] verified complaint" to establish undisputed facts. (*IFS Industries, Inc. v. Stephens* (1984) 159 Cal.App.3d 740, 753.) But this does not render the Separate Statement defective where the facts are also supported by admissible evidence. The Court therefore considers the evidence properly presented.

A partition action is an equitable action in which co-tenants/co-owners can seek to sever their co-ownership. (*Wallace v. Daley* (1990) 220 Cal.App.3d 1028, 1035.) A partition trial contains three components: (1) determining the interest of the parties and the status and priority of all liens upon the property [Code Civ. Proc., §§872.610, 872.620, 872.630], (2) determining if the plaintiff is entitled to partition [Code Civ. Proc., §872.710], and (3) determining the manner of partition, i.e., of kind, of sale, or combination of kind and sale [Code Civ. Proc., §§872.810, 872.820, 872.830, 873.210].

Partition of concurrent interest in property shall be as a right unless barred by a valid waiver or as provided by Code of Civil Procedure section 872.730. (Code Civ. Proc., §872.710, subd. (b); *De Roulet v. Mitchel* (1945) 70 Cal.App.2d 120, 124 [“To grant it is not a mere matter of grace. The only indispensable requirement [for partition] is that a clear title be shown....”].)

Here, the recorded deeds establish that Filiberto, Hipolito, and the Trust are the current title holders of the Subject Property. (RJN, Exhs. D-E.) Although title was held as joint tenants when owned by Blanca, Filiberto, and Hipolito [RJN, Exh. D], Blanca’s transfer of her interest to the Trust resulted in the ownership being held as tenants-in-common. [RJN, Exh. E.] (*Zanelli v. McGrath* (2008) 166 Cal.App.4th 615, 631; *Riddle v. Harmon* (1980) 102 Cal.App.3d 524, 531.) Thus, the recorded deeds establish that the Trust, Filiberto, and Hipolito each hold a 1/3 undivided interest in the Subject Property.

Defendants contend that the recorded title does not reflect the parties’ actual ownership because Filiberto and Hipolito were placed on title only to facilitate financing and Blanca retained all beneficial ownership. By presumption, the owner of the legal title is the presumed owner of the beneficial title. (Evid. Code, §662.) This presumption may be rebutted by clear and convincing proof. (Evid. Code, §662.)

Defendants’ evidence does not create a triable issue sufficient to rebut that presumption. The property was transferred among the family members on multiple occasions, including the removal of Filiberto from title and his subsequent re-addition. Blanca also attests that Filiberto was not making any money to be placed on the loan [Blanca’s Decl. at ¶32], yet he was placed on title when the Subject Property was first purchased [RJN, Exh. A]. Finally, although Blanca

attests that she intended to have all her children on the title so they obtain the property upon her death (Blanca's Decl. at ¶35), none of the title transfers ever added Esmeralda.

Esmeralda likewise has not established an ownership interest. The recorded Trust Deed establishes a \$300,000 lien in her favor. A trust deed conveys a lien, not a beneficial ownership interest. (*Robin v. Crowell* (2020) 55 Cal.App.5th 727, 742 ["[A] deed of trust is a lien on the property."]; *In re Criz* (S.D.Cal. 2011) 457 B.R. 806, 817 ["[A] deed of trust is no longer a conveyance of actual title to the Property, but merely a lien."].) A cotenant may encumber his or her separate interest without affecting the interests of the other tenants. (*Dieden v. Schmidt* (2002) 104 Cal.App.4th 645, 650 ["Cotenants (both joint tenants and tenants in common) may encumber their separate interest without the consent, and without affecting the interests, of other tenants."].) Moreover, a lienholder may not stop a partition but has the right to receive satisfaction or other disposition of its lien. (*Gardiner v. Cord* (1904) 145 Cal. 157, 164-65.)

Accordingly, Plaintiffs have established that they are co-owners of the Subject Property and are entitled to partition. Unless waived, the right to partition is absolute for a co-owner. (*LEG Investments v. Boxler* (2010) 183 Cal.App.4th 484, 493; see also Code Civ. Proc., §872.210, subd. (a)(1).) Defendants do not claim Plaintiffs waived their right to seek partition.

The issue of the manner of partition, however, is different. When one co-owner seeks partition, the presumption is for physical division and distribution of a portion to each co-owner. (Code Civ. Proc., §872.810; *Butte Creek Island Ranch v. Crim* (1982) 136 Cal.App.3d 360, 365-66 [*Butte Creek*].) Partition by sale is permissible if the parties agreed to said relief [Code Civ. Proc., §872.820, subd. (a)], or it is more equitable to sell the property under the circumstances [Code Civ. Proc., §872.820, subd. (b)]. Partition by sale is more equitable when "the property is so situated that a division into sub parcels of equal value cannot be made" or "due to the particular situation of the land, the division of the land would substantially diminish the value of each party's interest." (*Butte Creek, supra*, 136 Cal.App.3d at pp. 366-67.) The party seeking the sale bears the burden that selling is more equitable rather than physical division. (*Id.* at p. 366.)

Plaintiffs have not met that burden. Although the evidence indicates that dwelling units exist on the Subject Property, Plaintiffs have not established that the property cannot be divided into

equal portions or that physical division would substantially diminish the value of each party's interest. (*Butte Creek, supra*, 136 Cal.App.3d at p. 366 ["[T]he party desiring a partition sale must show the land cannot be divided equally."].)

Thus, Plaintiffs are entitled to partition, but they have not established as a matter of law that partition must be accomplished by sale. If the Court later determines that partition by sale is appropriate, the Court may then determine the appropriate method and terms of sale. (Code Civ. Proc., §§873.510, 873.520, 873.600, 873.610.)

Disposition

Plaintiffs' Motion for Summary Adjudication is GRANTED IN PART and DENIED IN PART.

The Motion is GRANTED insofar as Plaintiffs seek determination that they are entitled to partition the Subject Property.

The Motion is DENIED insofar as Plaintiffs seek a determination that the Subject Property must be partitioned by sale. The evidence presently before the Court does not establish that partition by sale is more equitable than partition in kind.

The Court therefore does not presently determine the manner of partition.

Entry of an Interlocutory Judgment of Partition pursuant to Code of Civil Procedure section 872.720 is DEFERRED pending further proceedings to determine the appropriate manner of partition and to address any remaining issues concerning the status and priority of liens or other interests in the Subject Property.

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You may appear in person at the hearing although remote appearance by CourtCall is preferred. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-37) at (909) 708-8707 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2515007

Lomeli vs GAF Materials et al

TENTATIVE RULING:

On September 29, 2025, Defendant Express Employment Professionals, LLC (“Express”) filed the instant Motion to Compel Arbitration of Plaintiff’s Individual PAGA Claim and to Stay the Representative PAGA Claim (“Motion”), supported by declarations from Harvey H.H. Homsey (“Homsey”) and Nora Stilestein. On October 20, 2025, Defendant GAF Materials, LLC (“GAF”) filed a Joinder in Express’s Motion (“Joinder”).

Plaintiff filed his Opposition to the Motion (“Opposition”) on January 27, 2026, supported by a declaration from Plaintiff. Express filed its Reply on February 2, 2026, supported by a declaration from Ashley Rowlett and objections to Plaintiff’s declaration (“Evidentiary Objections”).

On March 12, 2026, the Court continued the hearing and permitted the parties to file supplemental briefs. On May 15, 2026, Express filed a Supplemental Brief in Support of its Motion. Plaintiff filed his Supplemental Brief in Support of his Opposition on May 29, 2026.

Having considered all the submitted papers, the Court rules as follows:

Evidentiary Objections

Express objects to paragraph 5 of Plaintiff's declaration on the grounds of speculation, irrelevance, lack of foundation, and hearsay.

The Court SUSTAINS Express's objections to Plaintiff's statements at page 2, line 28 through page 3, line 1, and page 3, lines 6–7, on the grounds of hearsay and lack of foundation. Plaintiff states that the basis for his conclusion that a "substantial amount of the products that I was involved with packing for shipment were headed to other states outside of California" was based, at least in part, on conversations with his coworkers. Plaintiff does not establish a foundation for those coworkers' purported statements or otherwise establish that the statements fall within an exception to the hearsay rule.

The Court OVERRULES Express's remaining objections to paragraph 5 of Plaintiff's declaration.

The Merits of Moving Defendants' Motion

Contractual Relationship Between Plaintiff and Express

Express contends Plaintiff executed a Mutual Arbitration Agreement ("Agreement") on September 11, 2024. According to Homsey's declaration, the Agreement was executed as part of Plaintiff's onboarding documents. Plaintiff does not dispute that he signed the Agreement. Based on the foregoing, the Court finds that Plaintiff entered into the Agreement and proceeds to the enforceability of that Agreement.

Application of Federal and State Law

The Federal Arbitration Act ("FAA") applies to arbitration agreements involving interstate commerce. (9 U.S.C. § 2; *Aviation Data, Inc. v. American Express Travel Related Services Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534.) "Involving commerce" is interpreted broadly and is the equivalent of "affecting commerce," which signals the broadest permissible exercise of

Congress's Commerce Clause power. (*Citizens Bank v. Alafabco, Inc.* (2003) 539 U.S. 52, 56–57.) The party seeking to invoke the FAA bears the burden of establishing that the transaction falls within the FAA's coverage. (*Shepard v. Edward Mackay Enterprises, Inc.* (2007) 148 Cal.App.4th 1092, 1101.)

Here, the Agreement expressly provides:

“The Parties agree that the Company is engaged in transactions involving interstate commerce, and this Agreement shall be enforceable under the substantive and procedural provisions of the Federal Arbitration Act ('FAA'), 9 U.S.C. §§ 1, et seq.”

The FAA, however, contains an exemption for “contracts of employment of seamen, railroad employees, or any other class of workers engaged in foreign or interstate commerce.” (9 U.S.C. § 1.) The United States Supreme Court has construed this residual clause to exempt transportation workers from the FAA. (*Circuit City Stores, Inc. v. Adams* (2001) 532 U.S. 105, 119.) Whether an employee falls within the exemption turns on the nature of the employee's work, rather than the general nature of the employer's business. (*Southwest Airlines Co. v. Saxon* (2022) 596 U.S. 450, 455–56; *Bissonnette v. LePage Bakeries Park St., LLC* (2024) 601 U.S. 246, 256.)

In *Saxon*, the United States Supreme Court held that airline ramp agents who frequently loaded and unloaded baggage, airmail, and commercial cargo onto and from aircraft engaged in interstate transportation were transportation workers. The Court explained that transportation workers must play a direct and necessary role in the free flow of goods across borders and be actively engaged in transportation of those goods. (*Saxon*, supra, 596 U.S. at pp. 458–59.) The Court cautioned, however, that the exemption does not extend to every employee whose work has some connection to goods eventually moving in interstate commerce.

Plaintiff argues that he falls within the transportation-worker exemption because he prepared and packaged finished roofing shingles for shipment to customers outside California. Plaintiff relies principally on *Ortiz v. Randstad Inhouse Services, LLC* (9th Cir. 2024) 95 F.4th 1152.

Ortiz is distinguishable. There, the plaintiff worked at a warehouse that received Adidas products from mostly international locations. The products remained at the warehouse before being

shipped to consumers and retailers in various states. The plaintiff transported packages to and from storage racks, assisted employees in obtaining packages for shipment, and assisted in preparing packages for their subsequent shipment. The Ninth Circuit held that these workers handled goods while the goods remained in the flow of interstate commerce and played a direct and necessary role in facilitating their continued movement. (*Ortiz*, supra, 95 F.4th at pp. 1161–62.)

The circumstances here are materially different. Plaintiff's own description of his duties establishes that he worked in the Fontana Plant's folding room, where he retrieved flat shingles from a central pallet, folded the shingles into a ridge shape, placed the finished product into a box, and placed the box on a conveyor belt or pallet. The products were manufactured at the California facility. Plaintiff has not established that he loaded the products onto vehicles transporting goods across state lines, unloaded goods arriving from interstate transportation, or otherwise handled goods that were already moving through an interstate transportation stream. Plaintiff's declaration that a substantial amount of the products he packed were ultimately shipped outside California does not establish that his work itself was part of the interstate transportation of those products. As noted above, the Court has sustained the hearsay and foundation objections to the portion of Plaintiff's declaration on which he relies for that assertion. Even assuming some of the shingles he packed were ultimately shipped outside California, the relevant inquiry is the nature of Plaintiff's work and his relationship to the interstate movement of those goods.

The distinction between production/packaging work performed before goods enter the interstate stream and work performed on goods already in interstate transportation is significant. In *Gallegos v. Partners Personnel-Management Services, LLC* (2024) 2024 WL 3064400, the Fifth District considered a temporary worker who packed and bagged pistachios at the end of a production line before the goods entered interstate commerce. The court concluded that such work was production-line packaging rather than transportation because the employee did not directly launch the goods into interstate commerce or otherwise actively engage in their interstate transportation. Although *Gallegos* is unpublished and therefore is not precedent under

California Rules of Court, rule 8.1115, its reasoning is persuasive and closely analogous to the facts presented here.

Accordingly, Plaintiff has not established that he belongs to a class of workers engaged in foreign or interstate transportation within the meaning of 9 U.S.C. § 1. The FAA therefore applies to the Agreement.

Enforceability of the Agreement

An arbitration agreement is enforceable unless a generally applicable contract defense, such as unconscionability, renders it unenforceable. (Code Civ. Proc., § 1281; *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.)

Unconscionability has both procedural and substantive elements, and both must be present, although they need not be present to the same degree. (*Id.* at p. 114; *Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 492.) The analysis employs a sliding scale: the greater the substantive unconscionability, the less procedural unconscionability is required. (*Ramirez*, *supra*, 16 Cal.5th at p. 494.)

Procedural Unconscionability

Procedural unconscionability concerns the circumstances surrounding formation of the agreement and focuses on oppression and surprise. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125–27.) Oppression may arise from unequal bargaining power and the absence of meaningful choice; surprise concerns whether an allegedly unfair provision was hidden or presented in a manner that frustrated reasonable expectations.

Plaintiff contends the Agreement was a contract of adhesion because it was presented on a take-it-or-leave-it basis as a condition of employment. Plaintiff further asserts that he was not provided the Agreement in advance or permitted to retain a copy, had no opportunity to consult counsel, was rushed because other applicants were waiting to use the computer, and was told the documents were “standard stuff” that needed to be signed quickly so he could begin work the following day.

The Court finds a minimal degree of procedural unconscionability.

The Agreement was presented as a condition of employment and Plaintiff had no ability to negotiate its terms. That circumstance supports a finding of adhesion and some degree of procedural unconscionability. (*Cisneros Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 591.) At the same time, the Agreement is a short, three-page, standalone arbitration agreement rather than an arbitration provision buried in a lengthy employment contract. There is insufficient evidence that Plaintiff was subjected to the type of extraordinary pressure, deception, or surprise present in cases finding a heightened degree of procedural unconscionability. See *OTO*, supra, 8 Cal.5th at pp. 127–28.

The Court therefore finds minimal procedural unconscionability.

Substantive Unconscionability

Substantive unconscionability concerns whether the terms of the agreement are overly harsh, unduly oppressive, or unfairly one-sided. (*OTO*, supra, 8 Cal.5th at pp. 129–30.) In the employment context, courts closely examine whether an arbitration agreement imposed by an employer allocates arbitration obligations in a manner that unjustifiably favors the employer. Here, Plaintiff identifies several provisions that he contends are substantively unconscionable. The Court finds two provisions particularly significant: (1) the Agreement’s broad definition of covered claims; and (2) the provision extending the arbitration obligation to Plaintiff’s heirs, spouse, successors, assigns, and agents without a corresponding obligation imposed upon Express’s related entities and other beneficiaries.

The Agreement provides, in pertinent part:

“Disputes Subject to Arbitration: Except as provided below, both the Company and You (on behalf of Yourself as well as Your heirs, spouse, successors, assigns, and agents) agree all legal disputes and claims between them shall be determined exclusively by final and binding arbitration before a single, neutral arbitrator as described in this Agreement. Except as provided below, claims subject to this Agreement include without limitation: all claims pertaining to Individual’s employment relationship with the Company, or the formation or termination of the employment relationship (including application for employment or any background check form or

process); all claims for discrimination, harassment, or retaliation; wages; overtime; benefits; or other compensation; breach of any express or implied contract; violation of public policy; negligence or other tort claims, including without limitation: defamation, fraud, and infliction of emotional distress; and Violation of any federal, state, or local law, statute, regulation, or ordinance (“Claims”).:

It further provides:

“Except as provided below, Individual and the Company voluntarily waive all rights to trial in court before a judge or jury on all Claims covered by this Agreement. Claims against the Company subject to this Agreement shall include claims against the Company’s parents, subsidiaries, affiliates, franchisees, alleged agents, and alleged joint or co-employers, and their respective directors, officers, employees, agents, and clients, whether current, former, or future.”

The Agreement begins with expansive language requiring arbitration of “all legal disputes and claims between” the parties and then states that covered claims “include without limitation” employment claims, tort claims, and violations of any federal, state, or local law. Thus, although many examples of covered claims concern the employment relationship, the operative language is not expressly limited to claims arising out of or relating to Plaintiff’s employment.

The Court recognizes that *Ayala-Ventura v. Superior Court of Fresno County* (2026) 119 Cal.App.5th 241 provides important guidance concerning broadly worded arbitration provisions. There, the Fifth District construed an ambiguous arbitration agreement narrowly to apply only to employment-related claims and distinguished *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312 based on the particular contractual language and circumstances. *Ayala-Ventura* emphasized that unconscionability is highly contextual and that a broad agreement is not necessarily unconscionable in every employment setting.

The Court nevertheless finds the Agreement here distinguishable from *Ayala-Ventura* and more closely analogous to *Cook*, *Stoker v. Blue Origin, LLC* (2026) 120 Cal.App.5th 91 and *Phan v. Knight Sacramento SU Inc.* (2026) 121 Cal.App.5th 641. In *Cook*, the arbitration agreement required arbitration of “all claims,” including claims unrelated to employment, and also required arbitration of claims against broad categories of the employer’s related entities and personnel

without imposing a reciprocal obligation upon those entities. The Court of Appeal held those provisions substantively unconscionable. (*Cook, supra*, 102 Cal.App.5th at pp. 324–28.)

Likewise, in *Stoker*, the Second District recently held substantively unconscionable an employment arbitration agreement containing broad “any and all claims” language and provisions that extended arbitration obligations to third parties without reciprocal obligations. The court concluded that multiple defects, viewed together with procedural unconscionability, rendered the agreement unenforceable. (*Stoker, supra*, 120 Cal.App.5th 91.)

Finally, most recently in *Phan*, the Court of Appeals affirmed *Cook*, holding that while not all arbitration agreement covering all claims including those unrelated to employment are per se unconscionable, an agreement that expressly includes claims outside of the employment context—without justification—may be found to be overly broad. (*Phan, supra*, 121 Cal.App.5th at p 652.)

Here, as in *Cook*, the Agreement imposes arbitration obligations beyond the core bilateral relationship between Plaintiff and Express. Plaintiff is required to arbitrate claims not only for himself but also on behalf of his heirs, spouse, successors, assigns, and agents. At the same time, the Agreement does not impose a corresponding obligation upon Express’s related entities and other beneficiaries who may invoke the Agreement. The resulting asymmetry is not merely a benefit incidentally conferred upon third parties. Rather, it expands the universe of parties who may benefit from the arbitration requirement while leaving Plaintiff subject to the corresponding burden.

Express argues that the Agreement should be construed as limited to Plaintiff’s employment relationship because Express is a temporary staffing company and Plaintiff’s relationship with Express could only have arisen in the employment context. The Court is not persuaded. As in *Cook* and *Stoker*, the Court cannot rewrite the Agreement’s expansive language merely because a narrower construction would produce a more reasonable result. Further, the Agreement includes third-party beneficiaries who, Express has not established are only in the business of employment and as such, a covered claim could easily include claims unrelated to Plaintiff’s employment.

Express further argues its broad definition of claims is a business necessity and justifiable as it relies on third-party clients to provide work for its employees. “[E]mployment contracts can provide a ‘margin of safety’ that grants extra protection to the party with superior bargaining power if there is a legitimate commercial need for doing so.” (*Id.* at p. 655. Internal citations omitted.) However, the “business realities” giving rise to the commercial need must either be explained in the contract itself or must be factually established. (*Ibid.*) The Court finds Express fails to factually establish a legitimate commercial need for the Agreement’s broad definition of claims. While provides some facts to establish a legitimate business need for the inclusion of certain third-parties such as Express’s franchisees or affiliates, this is not the complete list of third-parties the Agreement purports to encompass. The Agreement includes claims from “the Company’s parents, subsidiaries, affiliates, franchisees, alleged agents, and alleged joint or co-employers, and their respective directors, officers, employees, agents, and clients, whether current, former, or future.” Particularly notable is the inclusion of the fact that this encompasses “current, former or future” individuals and entities. No justification is provided as to why such an expensive list is needed.

Finally, Express argues its third-parties are included in the Agreement under the definition of “the Company” and as such, the provision is mutual. The Court is not persuaded. The Agreement states, in pertinent part, “The term “Company” encompasses these individuals and entities to allow them to obtain the full benefits of this Agreement.” Such language does not expressly state that Express’s third-parties are similarly bound in their obligation to arbitrate. Indeed, the language earlier in the provision expressly stated that the provision only pertained to claims “against the Company.”

The Court therefore finds the Agreement contains multiple substantively unconscionable provisions.

Severability

Express argues that, even if portions of the Agreement are unconscionable, the Court should sever the offending provisions and enforce the remainder.

Civil Code section 1670.5, subdivision (a), permits a court to refuse to enforce an unconscionable contract or clause, or to sever or limit the offending provision. The California Supreme Court has clarified that there is no bright-line numerical rule requiring either severance or invalidation. The appropriate inquiry is whether the illegality can be cured through severance or restriction, whether the offending provisions are collateral to the agreement's main purpose, and whether enforcing the balance of the agreement would further the interests of justice.

(*Ramirez*, supra, 16 Cal.5th at pp. 516–18.)

The Court declines to sever the unconscionable provisions here.

First, the defect concerning the scope of covered claims cannot be cured simply by striking isolated language. To limit the Agreement to employment-related claims would require the Court to add limiting language that the parties did not include. Similarly, curing the lack of mutuality would require the Court to add reciprocal obligations applicable to Express's related entities or otherwise restructure the parties' allocation of arbitration rights. Such action would constitute reformation or augmentation of the Agreement rather than simple severance.

Second, the Agreement contains more than one substantively unconscionable provision, in addition to minimal procedural unconscionability. The multiple defects concern the fundamental scope and bilateral nature of the arbitration obligation rather than an isolated collateral provision.

Third, recent authority confirms that courts should not rewrite an adhesive employment arbitration agreement to create bilateral terms that the employer could have included when the agreement was drafted. In *Stoker*, the Second District declined to sever multiple unconscionable provisions because doing so would require the court to add terms limiting the agreement and would not further the interests of justice. (*Stoker*, supra, 120 Cal.App.5th at pp. 116–17.)

Similarly, on remand in *Ramirez*, the Court of Appeal held that multiple defects in an adhesive employment arbitration agreement supported refusing enforcement rather than judicial modification of the agreement. (*Ramirez v. Charter Communications, Inc.* (2025) 108 Cal.App.5th 1297, 1305–07.)

The same reasoning applies here. To enforce the Agreement, the Court would need to rewrite its scope and alter the allocation of arbitration rights between Plaintiff and Express's related entities

and other beneficiaries. The interests of justice would not be furthered by such judicial augmentation of an agreement imposed as a condition of employment.

Accordingly, the Court finds the Agreement permeated by unconscionability and unenforceable in its entirety.

GAF's Joinder

GAF is not a signatory to the Agreement. GAF argues it may nevertheless invoke the arbitration provision under principles of equitable estoppel because Plaintiff alleges that Express and GAF were joint employers or agents of one another and because Plaintiff's claims against GAF are purportedly "intimately founded and intertwined" with the contractual relationship containing the arbitration provision.

A nonsignatory may, in appropriate circumstances, invoke an arbitration agreement under principles of equitable estoppel where the plaintiff's claims against the nonsignatory are dependent upon or founded upon and inextricably intertwined with the underlying contractual obligations containing the arbitration clause. (*Boucher v. Alliance Title Co., Inc.* (2005) 127 Cal.App.4th 262, 271–72.) The doctrine focuses on the nature of the claims asserted against the nonsignatory.

GAF's Joinder is DENIED.

Because the Court finds the underlying arbitration Agreement unenforceable as a result of unconscionability, GAF cannot obtain greater arbitration rights than those available under the Agreement itself. GAF, as a nonsignatory, cannot invoke an arbitration provision that the Court has determined is unenforceable against the signatory Plaintiff.

Moreover, GAF has joined Express's Motion rather than establishing an independent basis for arbitration apart from the Agreement. Having determined that the Agreement is unenforceable, there is no enforceable arbitration obligation upon which GAF may rely.

RULING

For the reasons stated above, the Court rules as follows:

1. SUSTAINS Express's objections to Plaintiff's statements at page 2, line 28 through page 3, line 1, and page 3, lines 6–7, on the grounds of hearsay and lack of foundation.

2. OVERRULES Express's remaining objections to paragraph 5 of Plaintiff's declaration.
3. DENIES Express's Motion to Compel Arbitration of Plaintiff's Individual PAGA Claim and to Stay the Representative PAGA Claim.
4. DENIES GAF's Joinder in Express's Motion.